

23CHCV03727 23CHCV03727

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-14

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Case Number: 23CHCV03727 Hearing Date: July 14, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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20NINETEAM LLC, individually and derivatively on behalf of MOON POOL LLC,

Plaintiff(s),

vs.

DUSTIN WOLFF, et al.,

Defendant(s).

Case No.:

23CHCV03727

Hearing Date:

July 14, 2026

[TENTATIVE] ORDER RE:

motion to be relieved as counsel

I. BACKGROUND

This is a derivative shareholder action arising from wrongful distributions from a limited liability company. (Compl., ¶ 21.) On December 5, 2023, Plaintiff filed its complaint against defendants Dustin Wolff, Stephanie Wolff, and DOEs 1 through 20, inclusive, and nominal defendant Moon Pool, LLC. The complaint asserts five causes of action for: (1) breach of fiduciary duty, (2) conversion, (3) accounting, (4) constructive trust, and (5) breach of covenant of good faith and fair dealing.

The complaint alleges as follows:

Plaintiff 20Nineteam, LLC (Plaintiff) holds a six percent ownership interest in Moon Pool, LLC. (Compl., ¶ 3.) Defendants Dustin Wolff (Dustin) and Stephanie Wolff (Stephanie) each owns a 20.8% interest in Moon Pool. (Compl., ¶ 4-5.) Dustin and Stephanie have been the sole managers of Moon Pool since July of 2022. (Compl., ¶ 7.) Between June 2020 and June 2022, Moon Pool made distributions totaling \$2,520,000, and from July 2022 and November 2023 made at least \$1,120,000 in ownership distributions to separate entities controlled or owned by Dustin and Stephanie, without making pro rata distributions to all members, including Plaintiff, in violation of the operating agreement. (Compl., ¶ 20-21.) Dustin and Stephanie's conduct have jeopardized Moon Pool's ability to conduct business and pay debts and distributions to members when due. (Compl., ¶ 23.)

On March 2, 2026, Ropers Majeski, PC (Movant), counsel for Dustin, filed the present motion to be relieved as counsel.

On April 21, 2026, the matter was called for hearing and continued to April 22, 2026, due to Movant's non-appearance. The Court's tentative ruling to deny the motion for lack of proof of service was not adopted. (Minute Order dated April 21, 2026.)

On April 22, 2026, the present motion again came before the Court in Department 78 and was heard by Honorable Judge Tiana Murillo. The Court continued the hearing to May 29, 2026, due to deficiencies in the moving papers, and ordered Movant to personally serve the motion papers on Dustin and provide proof of personal service. (Minute Order dated April 22, 2026; Notice of Ruling dated April 23, 2026.)

On May 21, 2026, the Court continued the hearing to June 23, 2026.

On June 23, 2026, the Court continued the hearing once again, ordering Movant to personally serve the moving papers on Dustin and file proof of service.

On June 29, 2026, Movant filed the Proof of Service. No opposition to the motion has been filed.

Future hearing dates include a Case Management Conference on December 10, 2026; Final Status Conference on February 24, 2027, and Jury Trial on March 8, 2027.

II. LEGAL STANDARD

California Rule of Court rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052));

(3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Movant and all attorneys in the firm move to be relieved as counsel for Defendant Dustin. Movant has complied with the Court's order to personally serve the defendant with moving papers and has filed the proof of service. No opposition has been filed. In addition, Dustin will not be prejudiced by the withdrawal because trial is in March 2027.

Therefore, the Court grants the motion.

IV. CONCLUSION

The Motion to be Relieved is GRANTED.

Ropers Majeski, PC, and its attorneys, shall be relieved as counsel upon filing of the proof of service of the signed order (MC-053).

Moving Party is ordered to give notice.

DATED: July 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.